

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR..... CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIEASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBEASSOCIATE JUSTICE
BEFORE HER HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

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) Motion to Dismiss Appeal

Growing Out of the Case:

3) Action of Ejectment

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Heard: October 28, 2021

Decided: February 1, 2022

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Amara M. Sheriff of the J. Johnny Momoh & Associates Legal Chambers, Inc. appeared for the movants. Counsellor S.L. Lofen Keneah Jr. appeared for the respondents.

Following the notation of representations by the Court, the counsel for the movants argued that whilst the respondents had filed their bill of exceptions within the time allowed by statute, they however failed to file an appeal bond and to serve and file a notice of completion of appeal within sixty days, which are statutory grounds for the dismissal of an appeal.

The counsel for the respondents conceded the legal and factual averments in the motion to dismiss, as follows:

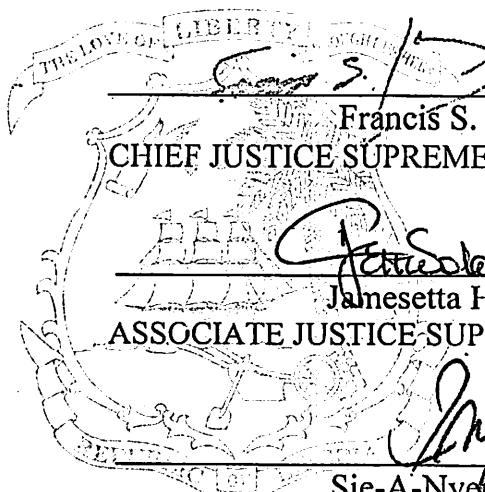
“At this stage, counsel for the respondents/appellants says that he concedes the legal soundness of the movants’ motion to dismiss the appeal announced by the respondents. Counsel says further that the respondents/appellants have long vacated the premises. And respectfully submits.”

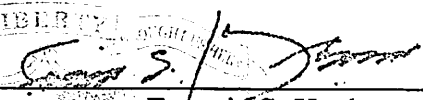
It is the law that, “all admissions made by a party himself or by his agent acting within the scope of his authority are admissible.” Civil Procedure Law Rev. Code 1:28.8(1). In view of the foregoing, it is hereby

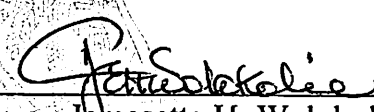
ADJUDGED:

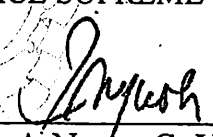
That the motion to dismiss the appeal is hereby granted, and the appeal ordered dismissed as a matter of law. The Clerk of this Court is ordered to send a mandate to the trial court commanding the judge presiding therein to resume jurisdiction over this case and enforce its final ruling. Costs are ruled against the respondents. AND IT IS HEREBY SO ORDERED.

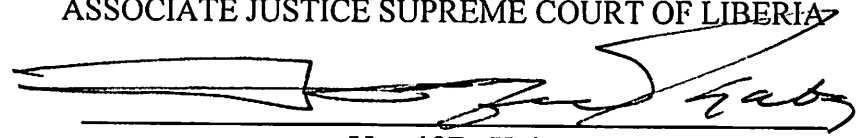
GIVEN UNDER OUR HANDS AND THE SEAL
OF THE SUPREME COURT OF LIBERIA, THIS
1ST DAY OF FEBRUARY, A. D. 2022.




Francis S. Korkpor, Sr.
CHIEF JUSTICE SUPREME COURT OF LIBERIA


Jamesetta H. Wolokolie
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA


Sie-A-Nyene G. Yuoh
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA


Yussif D. Kaba
ASSOCIATE JUSTICE SUPREME COURT OF LIBERIA

Note: Mr. Justice Joseph N. Nagbe being without the bailiwick of the Republic, did not participate in the hearing and determination of this case; hence he did not sign this Judgment.